



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10562 (EXTENSION)
FIRST REVISION April 15, 1993

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10562 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

[Signature]
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 29 1994

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

U.S. Sack Corporation
Grand Junction, CO

June 27, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

Expired - Not Active



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DOT-E 10562
(FIRST REVISION)

1. U.S. Sack Corporation, Grand Junction, CO, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of the corrosive solids, oxidizers, flammable solids and class B poisons described in paragraph 3 below subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of large, collapsible polyethylene-lined woven polypropylene bulk bags having a capacity of approximately 2200 pounds each, and top and bottom outlets, for shipment of corrosive solids, flammable solids, oxidizers, and poisons, and provides no relief from any regulation other than as specifically stated. NOTE: Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1990.

2. BASIS. This exemption is based on U.S. Sack Corporation's application dated December 15, 1992, submitted in accordance with 49 CFR 107.105, supplemental letter dated February 4, 1993.

3. HAZARDOUS MATERIALS (Descriptor and class). Those materials classed as Oxidizers, Corrosive materials, Poison B and Flammable solids listed in Appendix A of this exemption and other Oxidizers, Corrosive solids, Poison B solids and Flammable solids which are compatible with polyethylene and are specifically identified to and acknowledged in writing by the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to first shipment. (NOTE: Effective October 1, 1993, the appropriate numeric hazard class or division descriptions must be used in place of the written hazard class descriptions.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 172.331, 173.154, 173.164, 173.178, 173.182, 173.204, 173.217, 173.234, 173.245b, 173.366.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel. Shipments by cargo vessel must be made in accordance with the secondary containment requirements referenced in Appendix A of this exemption.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification collapsible, flexible non-reusable bulk container. Bag is fabricated of woven polypropylene, incorporating lifting straps of woven polyester webbing, plus a lining of polyethylene film (of 0.0035-inch minimum thickness), and having discharge and inlet openings closed by means of nylon tie ribbons, and a capacity of approximately 2,200 pounds.

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Bag, prepared as for shipment, must be capable of satisfactorily withstanding: free-fall drop tests (three from a height of four feet); Jerk test; Topple test; Topple and Drag test; righting test, and abrasion test as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers," Packaging Institute, U.S.A., Procedure T-4102-85, dated February, 1985.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Shipment by highway must be in closed vehicles or freight containers, in full truckloads only, except that bags containing ammonium nitrate fertilizer may be transported on flatbed trailers provided the bags are restricted from movement and completely covered by waterproof tarpaulins.

c. Shipment by rail must be in DF box cars except that COFC or TOFC service is authorized in accordance with 49 CFR 174.61.

d. For transportation by vessel, the following additional special provisions apply:

i. Bulk bags must be enclosed in a secondary containment system in accordance with Appendix A of this exemption. "Secondary containment system" means a closed or open freight container or transport vehicle.

ii. Bulk bags containing ammonium nitrate fertilizer, sodium nitrate, or sodium nitrite must be shipped as follow:

(1) In open or closed freight containers or transport vehicles; or

(2) As break bulk cargo, provided -

(a) No readily combustible hazardous material or non-regulated material is stowed in the same hold or compartment.

(b) The hold or compartment is dry and thoroughly cleaned of all loose debris and dunnage.

(c) The hatches are inspected for weathertightness before loading.

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(d) The hold or compartment is free of sharp projections which could tear or puncture the bulk bags.

(e) After the bulk bags are unloaded, the hold or compartment is inspected for spillage and any residue removed.

iii. Whenever a bulk bag containing a material classed as an oxidizer is loaded or unloaded as break bulk cargo:

(1) Firehoses must be laid out in the loading or unloading area and must be operable at all times.

(2) Smoking, carrying matches or lighting devices, or performing hot work shall be prohibited in the loading or unloading area; and the area must be posted with appropriate warnings signs.

iv. The provisions of 49 CFR 176.410(d), except subparagraphs (d)(1) and (d)(2), do not apply to shipments of ammonium nitrate fertilizer under this exemption.

e. Each bag must be permanently and durably marked in accordance with the requirements of Section 172.331 in letters at least two inches high on a contrasting background. The use of labels, tags or signs for marking purposes is prohibited.

f. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

g. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

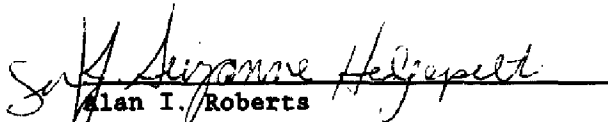
h. A copy of this exemption must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this exemption.

i. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. September 30, 1993.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Program.

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APPENDIX A

<u>Hazardous Material</u>	<u>UN Number</u>
Aluminum bromide, anhydrous	UN 1725
Aluminum chloride, anhydrous	UN 1726
Aluminum nitrate	UN 1438
Ammonium hydrogen fluoride, solid	UN 1727
Ammonium nitrate	UN 1942
Ammonium nitrate-carbonate mixture	UN 2068
Ammonium nitrate fertilizer	UN 2067
Ammonium nitrate fuel oil mixture *	NA 0331
Ammonium persulfate	UN 1444
Antimony compound, inorganic, n.o.s.	UN 1549
Antimony tribromide	UN 1549
Arsenic trioxide	UN 1561
Arsenical compound, solid, n.o.s.	UN 1557
Antimony tribromide	UN 1549
Arsenic trioxide	UN 1561
Arsenical compound, solid, n.o.s.	UN 1557
Bromoacetic acid	UN 1938
Calcium carbide *	UN 1402
Calcium cyanide, solid *	UN 1575

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Calcium Hypochlorite, hydrated	UN 2880
Calcium silicide * and * * * *	UN 1405
Carbamate pesticide, solid N.O.S. (contains 15% or less aldicarb by weight	UN 2757
Chloroacetic acid, solid	UN 1751
Chromic acid, solid *	UN 1463
Cyanuric chloride	UN 2670
Dichloroisocyanuric acid salts (Sodium dichloro-s-triazinetriions)	UN 2465
Potassium Dichloro-s- triazinetrione	UN 1479
Environmentally hazardous substance solid, n.o.s.	UN 3077
Ferric chloride, solid, anhydrous	UN 1773
Hazardous waste solid, n.o.s.	NA 3077
Lithium hypochlorite mixture, dry * (containing not more than 42 % available chlorine)	UN 1471
Magnesium granules, coated	UN 2950
Nickel sulfate (crude)	UN 1658
Organophosphorus Pesticide, solid, toxic, (Fonofos) {Dyfonate II 10-G}; {Dyfonate II 15-G} or {Dyfonate II 20-G}	UN 2783
Oxidizer, n.o.s. (1-Bromo-3-chloro-5, 5-demethylhydantion)	UN 1479
Para-nitro-toluene sulfonic	UN 2811
Pentachlorophenol	UN 2811

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APPENDIX

Pesticide, solid, toxic, n.o.s. (Tefuthrin) {Force (GFU524)}	UN 2588
Poisonous solid, N.O.S. or Poison B, solid, N.O.S. (Amyl Phenol) (Butyl Phenol) (Octyl Phenol)	UN 2811
Potassium cyanide *	UN 1680
Potassium hydroxide, flake	UN 1813
Potassium hydroxide, solid	UN 1813
Potassium nitrate	UN 1486
Potassium persulfate	UN 1492
Sodium azide	UN 1687
Sodium anitmonate	UN 2439
Sodium bifluoride	UN 2439
Sodium chlorate	UN 1495
Sodium cyanide *	UN 1689
Sodium hydrosulfite *	UN 1384
Sodium hydroxide, solid	UN 1823
Sodium nitrate	UN 1498
Sodium nitrite	UN 1500
Sodium perborate monohydrate	UN 1479
Sodium persulfate	UN 1505

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APPENDIX

Sodium sulfide, anhydrous *	UN 1385
TEMIK (Aldicarb pesticide)	UN 2588
Thallium compounds, n.o.s.	UN 1707
Trichloroisocyanuric acid, dry	UN 2468
Trichloro-s-triazinetriene, dry * *	UN 2468
Waste arsenical mixture, n.o.s. * * *	UN 1557
Zinc dust	UN 1436

* Transport by vessel not authorized.

* * This shipping description may be used only when all or part of the transport is by vessel. For transport by motor vehicle or rail freight, use "trichloroisocyanuric acid, dry."

* * * For mixtures of arsenic compounds, the name(s) of the hazardous components of the mixture must appear in the parenthesis.

* * * * Packaging for calcium silicide must be hermetically sealed.